REALTORS® Association of Edmonton

RESIDENTIAL LANDLORD BROKERAGE AGREEMENT TERMINATION

FOR USE IN COMMON LAW BROKERAGES

THIS RESIDENTIAL LANDLORD BROKERAGE TERMINATION AGREEMENT (THE "AGREEMENT") IS AMONG THE LANDLORD AND THE LANDLORD'S BROKERAGE (THE "BROKERAGE")

THE LANDLORD:

NAME:

NAME:

ADDRESS:

Street address, city, province, postal code

PHONE:

EMAIL:

THE BROKERAGE:

BROKERAGE NAME:

ADDRESS:

Street address, city, province, postal code

PHONE:

EMAIL:

BROKER, ASSOCIATE BROKER, OR ASSOCIATE AUTHORIZED TO REPRESENT THE BROKERAGE:

1. TERMINATION

1.1 The parties hereby agree to terminate the Residential Landlord Brokerage Agreement with Agreement # _____ MLS # _____ dated the _____ day of _____, 20_____ (the "Terminated Agreement").

1.2 Capitalized terms not defined in this Agreement will have the meaning found in the Terminated Agreement.

1.3 The Landlord agrees with the Brokerage that (choose one):

☐ **OPTION A: TO BE USED WHERE IT IS NOT INTENDED TO RELIST THE PROPERTY FOR LEASE**

(a) The Terminated Agreement will be in full force and effect up to and including _____, 20_____ (the "Termination Date").

(b) After the Termination Date, the Landlord agrees with the Brokerage that:

(i) the Landlord shall not lease or accept an offer for lease of the Property during the term of up to and including 90 days from the date of the Termination Date (the "Termination Hold-Over Period");

(ii) notwithstanding any provision of the Terminated Agreement, the Landlord shall no longer have the obligation to pay compensation under Section 6 of the Terminated Agreement after the Termination Hold-Over Period; and

(iii) notwithstanding Section 1.3(b)(ii), in the event that the Landlord breaches any of the terms of this Termination Agreement, the Landlord shall immediately pay to the Brokerage as liquidated damages a sum equal to the compensation as set out in the said Terminated Agreement.

☐ **OPTION B: TO BE USED WHERE IT IS INTENDED TO RELIST THE PROPERTY FOR LEASE WITH ANOTHER BROKERAGE.**

(a) If the Landlord relists with another brokerage, the obligation to pay the compensation under Section 6 of the Terminated Agreement will terminate.

(b) If the Landlord does not relist the Property with another brokerage, then the terms under Option A above will apply.

☐ **OPTION C: TO BE USED WHERE THE PARTIES WANT TO SEVER THEIR RELATIONSHIP WITH NO ONGOING OBLIGATIONS.**

(a) The parties agree to terminate the Terminated Agreement.

(b) Both parties sever their relationship under the Terminated Agreement with no ongoing obligations.

2. SIGNATURES

This Agreement may be signed by the parties in counterparts and delivered originally or electronically. The signed and delivered electronic copy is deemed to be an original. Signing may be done by wet ink, insertion by the signatory of an image of a wet ink signature, or by means of an electronic signature.

Dated at _____.m. on _____, 20 _____.

_____	_____
Landlord's Signature	Witness' Signature
_____	_____
Landlord's Printed Name	Witness' Printed Name

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Landlord's Signature	Witness' Signature
Landlord's Printed Name	Witness' Printed Name
Signature of Broker, Associate Broker, or Associate authorized to sign on behalf of the Brokerage	Brokerage Representative's Printed Name

Landlord initial here to show you have received a copy of this Agreement: _____ Date: _____

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